

26STCV00634 26STCV00634

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-09-28

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Case Number: 26STCV00634 Hearing Date: September 28, 2026 Dept: 732

Luckett Palmer Jr. v. Carrie Y. Palmer, et al.

Monday, September 28, 2026

CASE NUMBER: 26STCV00634

OPPOSED

Plaintiff Luckett

Palmer Jr.'s Motion for Interlocutory Judgment

Defendant Carrie

Y. Palmer's Motion for Reconsideration

Facts:

This is an action for partition. The Complaint alleges as follows. Plaintiff Luckett Palmer Jr. ("Plaintiff") and Defendant Carrie Palmer ("Defendant") are joint tenants with 50% interests in property on Hobart Boulevard in Los Angeles. (Complaint ¶¶ 1–3.) Plaintiff seeks partition by sale of the property. (Complaint ¶ 122.)

Procedural History: Plaintiff

filed the Complaint on January 8, 2026, alleging one cause of action for partition.

This

court on April 14, 2026, granted in part Defendant's motion for contribution of mortgage payments.

On

April 29, 2026, this court denied Defendant's motion for an accounting.

On

June 24, 2026, this court denied Plaintiff's motion to compel further responses from Defendant.

Plaintiff

filed the present motion for interlocutory judgment on March 18, 2026. Defendant filed an opposition on March 24, 2026. Plaintiff filed a reply on April 14, 2026.

On

April 21, 2026, this court continued hearing on Plaintiff's motion for interlocutory judgment.

Plaintiff

filed the present motion for reconsideration on August 24, 2026. Defendant filed an opposition on September 16, 2026. Plaintiff filed a reply on September 21, 2026.

Analysis

I.

MOTION FOR INTERLOCUTORY JUDGMENT

"If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition." (Code Civ. Proc. § 872.720, subd. (a).)

" '[P]artition' is

'the procedure for segregating and terminating common interests in the same parcel of property.' " (14859 Moorpark Homeowner's Assn. v. VRT Corp. (1998)

63 Cal.App.4th 1396, 1404-1405, 74 Cal.Rptr.2d 712.) It is a “ ‘ “remedy much favored by the law. The original purpose of partition was to permit cotenants to avoid the inconvenience and dissension arising from sharing joint possession of land. An additional reason to favor partition is the policy of facilitating transmission of title, thereby avoiding unreasonable restraints on the use and enjoyment of property.” ’ ” (Cummings, supra, 13 Cal.App.5th at p. 596, 220 Cal.Rptr.3d 463.)

The governing statute is section 872.720. Subdivision (a) declares that “[i]f the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property.” (§ 872.720, subd. (a).) The order of partition “shall order that the property be divided among the parties in accordance with their interests as determined in the interlocutory judgment.” (§ 872.810.) Section 872.720, subdivision (b), allows the court to issue sequential interlocutory judgments for original concurrent and successive owners if the court determines that it “is impracticable or highly inconvenient to make a single interlocutory judgment that determines, in the first instance, the interest of all the parties in the property.” (§ 872.720, subd. (b).)

When the trial court “determines the interests of the parties in the property and orders the partition of the property,” it shall decide the manner of partition “unless [this] is to be later determined.” (§ 872.720, subd. (a).) “The manner of partition may be ‘in kind’—i.e., physical division of the property [citation] according to the parties’ interests as determined in the interlocutory judgment. [Citations.] Alternatively, if the parties agree or the court concludes it ‘would be more equitable,’ the court may order the property sold and the proceeds divided among the parties.” (Cummings, supra, 13 Cal.App.5th at p. 597, 220 Cal.Rptr.3d 463; § 872.820.)

Two points are made clear by these provisions. First an interlocutory judgment in a partition action is to include two elements: a determination of the parties’ interests in the property and an order granting the partition. (§ 872.720, subd. (a).) Second, the manner of partition—i.e.,

a physical division or sale of the property—is to be decided when or after the parties' ownership interests are determined, but not before. (Ibid.)

(Summers v. Superior Court (2018) 24 Cal.App.5th 138, 142–143.)

Plaintiff Lockett Palmer Jr. ("Plaintiff") seeks an interlocutory judgment determining the interests of himself and Defendant Carrie Y. Palmer ("Defendant") with respect to the real property at issue, and ordering its partition by sale under the supervision of a referee. (Motion at pp. 7–8.) Plaintiff presents the deed in which the parties were each made equal joint tenants of the property in question. (Anand Decl. Exh. 3.) Per an attached title report, the property is a "single family residence." (Anand Decl. Exh. 2.) Defendant testifies in opposition that the property is a duplex with separate living spaces. (Carrie Palmer Decl. ¶ 35.)

Defendant opposes the motion on the grounds that no accounting has yet taken place, and on the grounds that she seeks to exercise a statutory option to buy out Plaintiff's interest in the property. (Opposition at pp. 2–4.)

Both arguments are unpersuasive. First, the statutory buyout right that Defendant identifies (See Code Civ. Proc., § 874.317) applies to tenancies in common, not joint tenancies like that at issue here. (See Code Civ. Proc., § 874.311, subd. (b) ["This act applies to real property held in tenancy in common where there is no agreement in a record binding all the cotenants which governs the partition of the property."].) Second, the accounting between the parties may be conducted after the sale of the property, and take into account the proceeds thereof. (See Code Civ. Proc. § 873.850.)

Plaintiff seeks the appointment of a referee to determine the manner of sale and to conduct the sale. (Motion at pp. 7–8.) "The referee appointed by the court to make a sale of the property shall sell the property in the manner and following the procedures provided in this chapter." (Code Civ. Proc. § 873.510.) "The property shall be sold at public auction or private sale as the court determines will be more beneficial to the parties. For the purpose of making this determination, the court may refer the matter to the referee and take into account the referee's report." (Code Civ. Proc. § 873.520.)

Partition by sale in this manner does not prevent Defendant from attempting to buy out Plaintiff's interest in the property for such price as Plaintiff is willing to accept. Prior to the sale, Plaintiff and Defendant may employ appraisers to evaluate the property, and either party may make such offers for the interest of the other, acceptance of which may obviate the necessity of a sale to a third party. But to mandate that either party accept such a buyout to the preference of sale to a third party risks preventing both parties from obtaining the highest available price for the property. Nor is it necessary or equitable that an accounting take place prior to the sale of the property, as the taking of such an accounting would delay proceedings and prolong the period of Plaintiff and Defendant's contentious co-ownership of the premises. An accounting is properly had following the sale of the property or buyout of one of the other party's interests therein.

Defendant in her presently pending motion for reconsideration argues that this court ought to order an accounting prior to interlocutory judgment, and thereafter permit Defendant to buy out Plaintiff's interest in the property, adjusted for the credits and debits accounted for. (Motion for Reconsideration at p. 6.) Plaintiff argues that since prior motions on her request for accounting and buyout were denied, she has obtained the means of financing any proposed buyout, including lender pre-approval for a loan of \$504,000.00 (Defendant Decl. Exh. A), and a written investor agreement to pay \$400,000.00 toward Defendant's purchase of Plaintiff's interest in the property (Defendant Decl. Exh. B.) Defendant argues that these funds are sufficient to cover any adjudicated interest that Plaintiff may have in the property, given its appraised value of \$941,000, the current mortgage balance of \$506,112.49, and thus \$434,887.51 in equity remaining in the property, which, prior to accounting of credits and debits, would be split equally between Plaintiff and Defendant upon sale. (Defendant Decl. ¶ 18.)

Plaintiff's motion for reconsideration does not alter the equitable analysis undertaken above. The new evidence presented by Plaintiff consists of evidence that, if an accounting and buyout were ordered rather than a third-party sale, she would be able to finance the buyout. But while this evidence shows that a buyout is financially possible on Plaintiff's end, it does not compel a conclusion that such a remedy is equitable or efficient in this case.

Plaintiff has demonstrated that he and Defendant have equal joint tenancies in the property and that partition by sale is proper due to the impracticability of partition in kind. Accordingly, an interlocutory judgment shall be entered and a referee appointed to conduct the sale.

The motion for interlocutory judgment is therefore GRANTED. Defendant's motion for reconsideration is DENIED.

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Superior Court of California

County of Los Angeles

Department 732

Lockett
palmer.,

Plaintiff

v.

CARRIE PALMER, et al.,

Defendants.

Case No.:
26STCV00634

Hearing Date: September 28, 2026

[TENTATIVE] RULING RE:

Plaintiff Lockett Palmer Jr.'s Motion for
Interlocutory Judgment

Defendant
Carrie Y. Palmer's Motion for Reconsideration

Plaintiff

Lockett Palmer's Motion for Interlocutory Judgment is GRANTED.

Defendant

Carrie Y. Palmer's Motion for Reconsideration is DENIED.

Plaintiff to give notice.

Dated: September 28, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court